

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: 22-23

MARINE TRANSPORT LOGISTICS, INC

Complainant

vs.

CMA-CGM (America), LLC

Respondent

**RESPONSE TO CMA’S MOTION TO
EXTEND DISCOVERY**

As the Commission may recall, initially MTL named CMA-CGM (America), LLC as the respondent, not CMA CGM S.A., and its counsel (the movant) has promised both the Commission and me (via a joint motion to substitute respondents) that if I stipulate to removing CMA-CGM (America), LLC from this case, that such would not impact discovery in this case. (Exhibit “1”, Docket Entry #17).

Moreover, CMA agreed in the joint motion as follows: “Putative Respondent CMA agrees (for this proceeding only) to forego the formalities of the Hague Convention and make a general appearance.” *Id.* at ¶2.

Now, CMA files the instant motion predicated on the Hague Convention. After I consented to the above-referenced motion to substitute respondents and served requests for documents, CMA’s counsel announced that the French authorities are saying that every one of my requests for documents is subject to their approval, meaning that the French government will decide which documents are appropriate for the Commission to determine if the Shipping Act of the United States was violated.

CMA's counsel should have disclosed — before they obtained my consent to their motion to substitute respondents — to me but certainly to the Commission that before they would respond to any discovery requests, that they and the Commission would need to first contact the French authorities.

The Commission also relied on CMA's representations because in the Decision on the Joint Motion for Substitution of Respondents, the Court stated: "The agreement is reasonable and will facilitate the conduct of the proceeding." (Docket Entry #18).

CMA knew about this procedure of first contacting the French authorities, and they did not disclose it. They admit that they knew about such because in their moving papers they state: "After CMA was served with MTL's discovery requests, it notified (SISSE) of the French Ministry of Finance, as required by French law."

When did CMA notify the French Ministry? Why was I not told about this? I served my requests for documents on February 6, 2023, yet CMA only filed this motion on March 9, 2023 — the deadline when CMA's responses were due pursuant to the Scheduling Order (Exhibit "2", Docket Entry #22). Therefore, it is submitted that this motion is not timely.

Additionally, the attached translation of the French document is not signed or certified and does not appear to be the best translation. It is not clear who translated this document or what their competency to translate such is.

It is also noteworthy that when CMA-CGM (America), LLC was a Respondent in the case where MTL was a Complainant in Docket No. 18-07, nobody had to contact any French authorities before exchanging documents, and it is clear that CMA was not prosecuted in that case.

Moreover, it appears that the Chief Administrative Law Judge has dealt with a similar issue as part of Docket No. 21-05 (Exhibit “3”) involving MSC Mediterranean Shipping, where the Court said: “Respondent MSC Mediterranean Shipping is alleged to be one of the largest container lines in the world. It has voluntarily chosen to conduct business in the United States ports and is regulated by the Federal Maritime Commission.”

According to the uncertified and unsigned translation, the only documents that would arguably fall under the cited French law are those that contain “communication of which is likely to create a prejudice to the sovereignty, security or economy of France.” CMA has not produced a single document in response to MTL’s first request for documents (Exhibit “4”). For example, at a minimum, they could have provided copies of demurrage invoices and communications with the consignee as to such. It surely cannot be argued that demurrage related documents on the subject containers poses a threat to France’s sovereignty.

Additionally, the Scheduling Order says: “If a motion could impact other deadlines, that should be clearly addressed in the motion and any response.” (Exhibit “2” at 2). CMA simply says in a footnote #1 of their moving papers: “It is not anticipated that this extension will prevent the Parties from completing discovery by the current deadline of June 19, 2023.” Of course, this extension will impact all of the deadline because, for example, as it stands now, depositions are set to begin in two weeks, on March 30 (Exhibit “2” at 1). MTL is not prepared to conduct any depositions having received zero documents from CMA, and there is no clear indication when such production will begin. Additionally, April 14, 2023, is the deadline to serve written discovery requests. *Id.* This leaves no room for any post-deposition requests.

I respectfully defer to the Court on this motion, but I would ask that if the motion is granted, that all the other deadlines in the Scheduling Order are adjusted accordingly and that

discovery be allowed to continue at least as to some of the most basic and clearly harmless documents of the type that were previously produced as part of the proceedings under Docket #18-07, especially those relating to charges and practices concerning demurrage/detention/storage.

Dated: March 15, 2023

Respectfully Submitted,

Garry Pogil

Garry Pogil (*Attorney for the Complainant*)
1120 Avenue of the Americas, 4th Floor
New York, NY 10036
Tel: 212-626-6825